

SOCIAL JUSTICE, INCLUSION AND WELFARE-STATE FRAMEWORK

THREE DIMENSIONS OF JUSTICE → EQUALITY LADDER → CONSTITUTIONAL ANCHOR → CAPABILITY STANDARD → AUTHORITIES BANK → SOCIAL PROTECTION FLOOR CARD

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g3 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 THREE DIMENSIONS OF JUSTICE

THREE DIMENSIONS OF JUSTICE WHO RECEIVES WHAT TRANSFERS, RESERVATION, SERVICES, SOCIAL SECURITY HOW IS THE HARM UNDONE COMPENSATION, REHABILITATION, PENALTY, RESTORATION WHOSE PERSONHOOD IS DENIED ANTI-DISCRIMINATION LAW, REPRESENTATION, DIGNITY

MOST VULNERABLE-GROUP POLICY NEEDS ALL THREE; FAILURE IN ONE

| CORE CLAIM                                                                                                                                                                                                                                     | MECHANISM                                                                                                                                                                                                                                              | CONSEQUENCE / LIMIT                                                                                                                                                                                                                                    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| DISTRIBUTIVE → who receives what: transfers, reservation, services, social security                                                                                                                                                            | RECOGNITIVE → whose personhood is denied: anti-discrimination law, representation, dignity                                                                                                                                                             | MUST REMEMBER: Social justice joins equal citizenship, redistribution, recognition,...                                                                                                                                                                 |
| CORRECTIVE → how is the harm undone: compensation, rehabilitation, penalty, restoration                                                                                                                                                        | RULE → most vulnerable-group policy needs all three; failure in one perpetuates injustice                                                                                                                                                              | DISTRIBUTIVE → who receives what: transfers, reservation, services, social security                                                                                                                                                                    |
| CORE CLAIM <ul style="list-style-type: none"><li>DISTRIBUTIVE → who receives what: transfers, reservation, services, social security</li><li>CORRECTIVE → how is the harm undone: compensation, rehabilitation, penalty, restoration</li></ul> | MECHANISM <ul style="list-style-type: none"><li>RECOGNITIVE → whose personhood is denied: anti-discrimination law, representation, dignity</li><li>RULE → most vulnerable-group policy needs all three; failure in one perpetuates injustice</li></ul> | CONSEQUENCE / LIMIT <ul style="list-style-type: none"><li>MUST REMEMBER: Social justice joins equal citizenship, redistribution, recognition,...</li><li>DISTRIBUTIVE → who receives what: transfers, reservation, services, social security</li></ul> |

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → most vulnerable-group policy needs all three; failure in one perpetuates injustice.

01

STAGE 01 EQUALITY LADDER

EQUALITY LADDER FORMAL EQUALITY SAME RULE FOR ALL; STRUCTURAL DISADVANTAGE SURVIVES THE RULE SUBSTANTIVE EQUALITY RESERVATION, TARGETED TRANSFERS, SPECIAL PROVISIONS CAPABILITY EQUALITY DID THE SUPPORT EXPAND WHAT A PERSON CAN DO

INPUT DELIVERED IS NOT THE SAME CLAIM AS CAPABILITY

|                                                                                                                                                                                                                             |                                                                                                                                                                                                               |                                                                                                                                                                                                                                      |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| FORMAL EQUALITY → same rule for all; structural disadvantage survives the rule                                                                                                                                              |                                                                                                                                                                                                               |                                                                                                                                                                                                                                      |
| SUBSTANTIVE EQUALITY: reservation, targeted transfers, special provisions                                                                                                                                                   | CAPABILITY EQUALITY: did the support expand what a person can do and be                                                                                                                                       | TEST → input delivered is not the same claim as capability expanded                                                                                                                                                                  |
| CORE CLAIM <ul style="list-style-type: none"><li>FORMAL EQUALITY → same rule for all; structural disadvantage survives the rule</li><li>SUBSTANTIVE EQUALITY: reservation, targeted transfers, special provisions</li></ul> | MECHANISM <ul style="list-style-type: none"><li>CAPABILITY EQUALITY: did the support expand what a person can do and be</li><li>TEST → input delivered is not the same claim as capability expanded</li></ul> | CONSEQUENCE / LIMIT <ul style="list-style-type: none"><li>FORMAL EQUALITY → same rule for all; structural disadvantage survives the rule</li><li>SUBSTANTIVE EQUALITY: reservation, targeted transfers, special provisions</li></ul> |

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FORMAL EQUALITY → same rule for all; structural disadvantage survives the rule.

02

STAGE 02 CONSTITUTIONAL ANCHOR

CONSTITUTIONAL ANCHOR SOCIALIST REPUBLIC; JUSTICE SOCIAL, ECONOMIC AND POLITICAL PART IV ARTICLES 38, 39, 41 TO 43, 46 TO 47 ARTICLE 46 EDUCATIONAL AND ECONOMIC INTERESTS OF SCs, STs AND WEAKER NOT DIRECTLY JUSTICIABLE; INTERPRETIVE AID, RECORDED WITH MINERVA MILLS

|                                                                                                                                                                                                                 |                                                                                                                                                                                                                                        |                                                                                                                                                                                                                          |                                                                                      |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------|
| PREAMBLE → socialist republic; justice social, economic and political                                                                                                                                           | PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare                                                                                                                                                                       | ARTICLE 46 → educational and economic interests of SCs, STs and weaker sections                                                                                                                                          | LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980 |
| CORE CLAIM <ul style="list-style-type: none"><li>PREAMBLE → socialist republic; justice social, economic and political</li><li>PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare state</li></ul> | MECHANISM <ul style="list-style-type: none"><li>ARTICLE 46 → educational and economic interests of SCs, STs and weaker sections</li><li>LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980</li></ul> | CONSEQUENCE / LIMIT <ul style="list-style-type: none"><li>PREAMBLE → socialist republic; justice social, economic and political</li><li>PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare state</li></ul> |                                                                                      |

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980.

03

STAGE 03 CAPABILITY STANDARD

CAPABILITY STANDARD ACHIEVED STATES BEING NOURISHED, BEING HEALTHY, BEING LITERATE THE REAL FREEDOMS TO ACHIEVE THOSE STATES OPEN-ENDED FRAMEWORK; SPECIFICATION LEFT TO PUBLIC REASONING TEN CENTRAL CAPABILITIES AS A THRESHOLD A JUST SOCIETY

EQUAL INCOME YIELDS UNEQUAL CAPABILITY ACROSS HEALTH AND EXCLUSION

| CORE CLAIM | MECHANISM | CONSEQUENCE / LIMIT |
|------------|-----------|---------------------|
|------------|-----------|---------------------|

03

CORE CLAIM

- PREAMBLE → socialist republic; justice social, economic and political
- PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare state

MECHANISM

- ARTICLE 46 → educational and economic interests of SCs, STs and weaker sections
- LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980

CONSEQUENCE / LIMIT

- PREAMBLE → socialist republic; justice social, economic and political
- PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare state

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980.

04

STAGE 03

CAPABILITY STANDARD

CAPABILITY STANDARD

ACHIEVED STATES

BEING NOURISHED, BEING HEALTHY, BEING LITERATE

THE REAL FREEDOMS TO ACHIEVE THOSE STATES

OPEN-ENDED FRAMEWORK; SPECIFICATION LEFT TO PUBLIC REASONING

TEN CENTRAL CAPABILITIES AS A THRESHOLD A JUST SOCIETY

EQUAL INCOME YIELDS UNEQUAL CAPABILITY ACROSS HEALTH AND EXCLUSION

CORE CLAIM

- FUNCTIONINGS → achieved states: being nourished, being healthy, being literate
- CAPABILITIES → the real freedoms to achieve those states

MECHANISM

- SEN → open-ended framework; specification left to public reasoning
- NUSSBAUM → ten central capabilities as a threshold a just society must secure

CONSEQUENCE / LIMIT

- CONSEQUENCE → equal income yields unequal capability across health and exclusion
- FUNCTIONINGS → achieved states: being nourished, being healthy, being literate

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONSEQUENCE → equal income yields unequal capability across health and exclusion.

05

STAGE 04

AUTHORITIES BANK

AUTHORITIES BANK

DIFFERENCE PRINCIPLE

INEQUALITY JUST ONLY IF IT BENEFITS THE LEAST ADVANTAGED

FAIR EQUALITY OF OPPORTUNITY AS THE COMPANION STANDARD

REDISTRIBUTION, RECOGNITION AND REPRESENTATION; MISRECOGNITION BLOCKS DISTRIBUTION

WARNING AGAINST POLITICAL EQUALITY AMID SOCIAL AND ECONOMIC INEQUALITY

RECOGNITION CANNOT SUBSTITUTE FOR SERVICES, ASSETS AND EMPLOYMENT

CORE CLAIM

RAWLS → difference principle: inequality just only if it benefits the least advantaged

RAWLS → fair equality of opportunity as the companion standard

MECHANISM

FRASER → redistribution, recognition and representation; misrecognition blocks distribution

AMBEDKAR → warning against political equality amid social and economic inequality

CONSEQUENCE / LIMIT

QUALIFY → recognition cannot substitute for services, assets and employment

RAWLS → difference principle: inequality just only if it benefits the least advantaged

CORE CLAIM

- RAWLS → difference principle: inequality just only if it benefits the least advantaged
- RAWLS → fair equality of opportunity as the companion standard

MECHANISM

- FRASER → redistribution, recognition and representation; misrecognition blocks distribution
- AMBEDKAR → warning against political equality amid social and economic inequality

CONSEQUENCE / LIMIT

- QUALIFY → recognition cannot substitute for services, assets and employment
- RAWLS → difference principle: inequality just only if it benefits the least advantaged

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: QUALIFY → recognition cannot substitute for services, assets and employment.

06

STAGE 05

SOCIAL PROTECTION FLOOR CARD

SOCIAL PROTECTION FLOOR CARD

SOCIAL PROTECTION FLOORS RECOMMENDATION, 2012, NO. 202

GUARANTEE 1

ACCESS TO ESSENTIAL HEALTH CARE, INCLUDING MATERNITY CARE

GUARANTEE 2

BASIC INCOME SECURITY FOR CHILDREN

NUTRITION, EDUCATION AND CARE

GUARANTEE 3

INSTRUMENT → Social Protection Floors Recommendation, 2012, No. 202

GUARANTEE 1 → access to essential health care, including maternity care

GUARANTEE 2 → basic income security for children: nutrition, education and care

GUARANTEE 3 → basic income security in active age: sickness, unemployment, maternity, disability

CORE CLAIM

- INSTRUMENT → Social Protection Floors Recommendation, 2012, No. 202
- GUARANTEE 1 → access to essential health care, including maternity care

MECHANISM

- GUARANTEE 2 → basic income security for children: nutrition, education and care
- GUARANTEE 3 → basic income security in active age: sickness, unemployment, maternity, disability

CONSEQUENCE / LIMIT

- GUARANTEE 4 → basic income security for older persons
- STATUS → a Recommendation, not a ratified Convention; no self-executing domestic duty

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS → a Recommendation, not a ratified Convention; no self-executing domestic duty.

07

STAGE 06

UNIVERSALISM AGAINST TARGETING

UNIVERSALISM AGAINST TARGETING

LOWER STIGMA, LOWER EXCLUSION ERROR, HIGHER COST, HIGHER INCLUSION

CONCENTRATED RESOURCES, DOCUMENTATION BARRIERS, IDENTIFICATION DISPUTES

ERROR PAIR

INCLUSION ERROR IS LEAKAGE; EXCLUSION ERROR IS THE ELIGIBLE

INDIAN PRACTICE

UNIVERSAL BASIC SERVICES LAYERED ON TARGETED TRANSFERS AND RESERVATION

A PROMISE TO END LEAKAGE MUST STATE ITS EXCLUSION

CORE CLAIM

UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error

TARGETING → concentrated resources, documentation barriers, identification disputes

MECHANISM

ERROR PAIR → inclusion error is leakage; exclusion error is the eligible left out

INDIAN PRACTICE → universal basic services layered on targeted transfers and reservation

CONSEQUENCE / LIMIT

RULE → a promise to end leakage must state its exclusion consequence

UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS → a Recommendation, not a ratified Convention; no self-executing domestic duty.

06

STAGE 06 UNIVERSALISM AGAINST TARGETING

UNIVERSALISM AGAINST TARGETING LOWER STIGMA, LOWER EXCLUSION ERROR, HIGHER COST, HIGHER INCLUSION CONCENTRATED RESOURCES, DOCUMENTATION BARRIERS, IDENTIFICATION DISPUTES ERROR PAIR INCLUSION ERROR IS LEAKAGE; EXCLUSION ERROR IS THE ELIGIBLE INDIAN PRACTICE

UNIVERSAL BASIC SERVICES LAYERED ON TARGETED TRANSFERS AND RESERVATION A PROMISE TO END LEAKAGE MUST STATE ITS EXCLUSION

| CORE CLAIM                                                                                                                                                                                                                                            | MECHANISM                                                                                                                                                                                                                                           | CONSEQUENCE / LIMIT                                                                                                                                                                                                                             |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error                                                                                                                                                               | ERROR PAIR → inclusion error is leakage; exclusion error is the eligible left out                                                                                                                                                                   | RULE → a promise to end leakage must state its exclusion consequence                                                                                                                                                                            |
| TARGETING → concentrated resources, documentation barriers, identification disputes                                                                                                                                                                   | INDIAN PRACTICE → universal basic services layered on targeted transfers and reservation                                                                                                                                                            | UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error                                                                                                                                                         |
| <b>CORE CLAIM</b> <ul style="list-style-type: none"><li>UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error</li><li>TARGETING → concentrated resources, documentation barriers, identification disputes</li></ul> | <b>MECHANISM</b> <ul style="list-style-type: none"><li>ERROR PAIR → inclusion error is leakage; exclusion error is the eligible left out</li><li>INDIAN PRACTICE → universal basic services layered on targeted transfers and reservation</li></ul> | <b>CONSEQUENCE / LIMIT</b> <ul style="list-style-type: none"><li>RULE → a promise to end leakage must state its exclusion consequence</li><li>UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error</li></ul> |

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → a promise to end leakage must state its exclusion consequence.

07

STAGE 07 EQUITY TYPES

EQUITY TYPES HORIZONTAL EQUITY EQUALS TREATED EQUALLY VERTICAL EQUITY UNEQUALS TREATED UNEQUALLY IN PROPORTION TO DISADVANTAGE AFFIRMATIVE ACTION OPERATIONALISES VERTICAL EQUITY, NOT A BREACH OF VERTICAL EQUITY NEEDS A DEFENSIBLE MEASURE OF DISADVANTAGE

CREAMY-LAYER EXCLUSION SHOWS TARGETING INSIDE AFFIRMATIVE ACTION

| CORE CLAIM                                                                                                                                                                                      | MECHANISM                                                                                                                                                                                                                                  | CONSEQUENCE / LIMIT                                                                                                                                                                                       |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| HORIZONTAL EQUITY → equals treated equally                                                                                                                                                      | APPLICATION → affirmative action operationalises vertical equity, not a breach of equality                                                                                                                                                 | BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action                                                                                                                               |
| VERTICAL EQUITY → unequals treated unequally in proportion to disadvantage                                                                                                                      | CONDITION → vertical equity needs a defensible measure of disadvantage                                                                                                                                                                     | HORIZONTAL EQUITY → equals treated equally                                                                                                                                                                |
| <b>CORE CLAIM</b> <ul style="list-style-type: none"><li>HORIZONTAL EQUITY → equals treated equally</li><li>VERTICAL EQUITY → unequals treated unequally in proportion to disadvantage</li></ul> | <b>MECHANISM</b> <ul style="list-style-type: none"><li>APPLICATION → affirmative action operationalises vertical equity, not a breach of equality</li><li>CONDITION → vertical equity needs a defensible measure of disadvantage</li></ul> | <b>CONSEQUENCE / LIMIT</b> <ul style="list-style-type: none"><li>BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action</li><li>HORIZONTAL EQUITY → equals treated equally</li></ul> |

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action.

08

STAGE 08 WELFARE-STATE MODELS

WELFARE-STATE MODELS STATE ACTS AFTER FAMILY AND MARKET FAIL; MEANS-TESTED AND UNIVERSAL SERVICES AS A CITIZENSHIP RIGHT; DE-STIGMATISED BUT COSTLIER RECORDED AS A HYBRID STATUTORY ENTITLEMENTS LAYERED ON TARGETED SCHEMES NAMED ENTITLEMENTS

NATIONAL FOOD SECURITY ACT, 2013; RIGHT TO EDUCATION ACT

|                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                            |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>CORE CLAIM</b> <ul style="list-style-type: none"><li>RESIDUAL → state acts after family and market fail; means-tested and stigmatised</li><li>INSTITUTIONAL → universal services as a citizenship right; de-stigmatised but costlier</li></ul> | <b>MECHANISM</b> <ul style="list-style-type: none"><li>INDIA → recorded as a hybrid: statutory entitlements layered on targeted schemes</li><li>NAMED ENTITLEMENTS → National Food Security Act, 2013; Right to Education Act, 2009</li></ul> | <b>CONSEQUENCE / LIMIT</b> <ul style="list-style-type: none"><li>RESIDUAL → state acts after family and market fail; means-tested and stigmatised</li><li>INSTITUTIONAL → universal services as a citizenship right; de-stigmatised but costlier</li></ul> |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

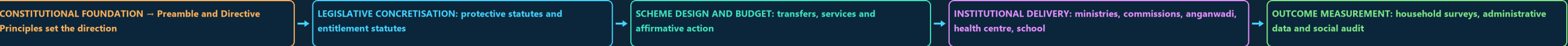
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NAMED ENTITLEMENTS → National Food Security Act, 2013; Right to Education Act, 2009.

09

STAGE 09 FIVE-STAGE WELFARE MECHANISM

FIVE-STAGE WELFARE MECHANISM CONSTITUTIONAL FOUNDATION PREAMBLE AND DIRECTIVE PRINCIPLES SET THE DIRECTION LEGISLATIVE CONCRETISATION PROTECTIVE STATUTES AND ENTITLEMENT STATUTES SCHEME DESIGN AND BUDGET TRANSFERS, SERVICES AND AFFIRMATIVE ACTION

INSTITUTIONAL DELIVERY



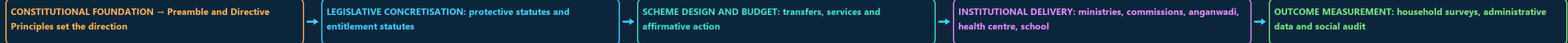
|                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                       |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>CORE CLAIM</b> <ul style="list-style-type: none"><li>CONSTITUTIONAL FOUNDATION → Preamble and Directive Principles set the direction</li><li>LEGISLATIVE CONCRETISATION: protective statutes and entitlement statutes</li><li>SCHEME DESIGN AND BUDGET: transfers, services and affirmative action</li></ul> | <b>MECHANISM</b> <ul style="list-style-type: none"><li>INSTITUTIONAL DELIVERY: ministries, commissions, anganwadi, health centre, school</li><li>OUTCOME MEASUREMENT: household surveys, administrative data and social audit</li><li>STOP TEST → an answer that ends at scheme design has described intent, not justice</li></ul> | <b>CONSEQUENCE / LIMIT</b> <ul style="list-style-type: none"><li>CLOSE DISTINCTION: Formal equality is not substantive equality, welfare is not charity,...</li></ul> |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|

09

STAGE 09 FIVE-STAGE WELFARE MECHANISM

FIVE-STAGE WELFARE MECHANISM CONSTITUTIONAL FOUNDATION PREAMBLE AND DIRECTIVE PRINCIPLES SET THE DIRECTION LEGISLATIVE CONCRETISATION PROTECTIVE STATUTES AND ENTITLEMENT STATUTES SCHEME DESIGN AND BUDGET TRANSFERS, SERVICES AND AFFIRMATIVE ACTION

INSTITUTIONAL DELIVERY



CORE CLAIM

- CONSTITUTIONAL FOUNDATION → Preamble and Directive Principles set the direction
- LEGISLATIVE CONCRETISATION: protective statutes and entitlement statutes
- SCHEME DESIGN AND BUDGET: transfers, services and affirmative action

MECHANISM

- INSTITUTIONAL DELIVERY: ministries, commissions, anganwadi, health centre, school
- OUTCOME MEASUREMENT: household surveys, administrative data and social audit
- STOP TEST → an answer that ends at scheme design has described intent, not justice

CONSEQUENCE / LIMIT

- CLOSE DISTINCTION: Formal equality is not substantive equality, welfare is not charity,...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Formal equality is not substantive equality, welfare is not charity..

10

STAGE 10 FIVE RECURRING WELFARE GAPS

FIVE RECURRING WELFARE GAPS THE ELIGIBLE PERSON IS NOT CORRECTLY LISTED; FIX THE NOBODY ESTABLISHES WHETHER IT WORKED; DEMAND THE SURVEY AND EVIDENCE LIMIT THE PROHIBITION OR PROTECTION IS NOT APPLIED; NAME THE MAP RIGHTS-HOLDER, DUTY-BEARER, INSTITUTION THE ENTITLEMENT DOES NOT REACH THE PERSON; TRACE THE WHAT ARRIVES IS TOO POOR TO CHANGE ANYTHING; MEASURE



CORE CLAIM

- IDENTIFICATION → the eligible person is not correctly listed; fix the roll, not the slogan
- ENFORCEMENT → the prohibition or protection is not applied; name the enforcing authority

MECHANISM

- DELIVERY → the entitlement does not reach the person; trace the last mile
- QUALITY → what arrives is too poor to change anything; measure the service, not the count

CONSEQUENCE / LIMIT

- OUTCOME-LEARNING → nobody establishes whether it worked; demand the survey and the round
- EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Map rights-holder, duty-bearer, institution,...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Map rights-holder, duty-bearer, institution..

11

STAGE 11 ANSWER SPINE FOR A SOCIAL-JUSTICE DEMAND

ANSWER SPINE FOR A SOCIAL-JUSTICE DEMAND NAME THE DEPRIVATION AND THE DIMENSION OF JUSTICE IT SEPARATE THE ENTITLEMENT, THE SCHEME THAT CARRIES IT AND CITE A DATED SURVEY OR ADMINISTRATIVE SOURCE AND STATE GRADED VERDICT PLUS THE NAMED GAP AND AN EXPLICIT



CORE CLAIM

- OPEN → name the deprivation and the dimension of justice it engages
- BUILD → separate the entitlement, the scheme that carries it and the delivery that reaches

MECHANISM

- TEST → cite a dated survey or administrative source and state what it cannot prove
- CLOSE → graded verdict plus the named gap and an explicit indicator caveat

CONSEQUENCE / LIMIT

- OPEN → name the deprivation and the dimension of justice it engages
- BUILD → separate the entitlement, the scheme that carries it and the delivery that reaches

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE → graded verdict plus the named gap and an explicit indicator caveat.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT CONSTITUTIONAL ANCHOR PREAMBLE ("SOCIALIST," "JUSTICE — SOCIAL, ECONOMIC LEGISLATIVE CONCRETISATION PROTECTIVE LAWS (SC/ST ATROCITIES ACT, RPWD ILO RECOMMENDATION 202 (2012) ESTABLISHES A SOCIAL-PROTECTION FLOOR AS A

INSTITUTIONAL COMMISSIONS (NCW, NCM, NCPCR, NHRC)

OPTIONAL SOURCE DEPTH

- Constitutional anchor: Preamble ("socialist," "justice — social, economic
- Legislative concretisation: Protective laws (SC/ST Atrocities Act, RPwD
- ILO Recommendation 202 (2012): Establishes a social-protection floor as a
- CAUTION: Institutional commissions (NCW, NCM, NCPCR, NHRC): Quasi-judicial bodies

ADVANCED DEBATE

- CAUTION: NFSA 2013 as rights-based entitlement: Shifts PDS from discretionary scheme
- CAUTION: RTE 2009 + NEP 2020 tension: RTE mandates free, compulsory education 6-14;
- CAUTION: Manual scavenging as three-dimension test case: Prohibition (corrective),
- CAUTION: Boundary case — creamy-layer exclusion in OBC reservation: Targeting within

LEGACY / NUANCE

- CAUTION: Universalism vs targeting: Universalism reduces stigma and exclusion error
- CAUTION: Rights-based framing vs fiscal constraint: Entitlements (NFSA, RTE) create
- CAUTION: Capability measurement difficulty: Functionings are easier to observe
- CAUTION: Commission overload: NCW, NCM, NCPCR and NHRC can investigate and recommend

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.